

Q. Critically analyze the shift from caste based to multi-axis affirmative action in India with example from state level initiative such as sub-categorization and gender based reservation?

→ India affirmative action has been historically rooted in caste based quotas (SC/ST and later OBCs) which aim to uplift oppressed communities. But over a time affirmative action has been evolved from caste based to Multi axis affirmative action - Gender Based ; Intra-caste disparities (BC and EBCs) and Economic criteria.

VERTICAL ⇒ HORIZONTAL ⇒ ECONOMICAL

Evolution of reservation in India :-

1A. Pre constitution phase

Social reformer, community leaders and political group has been demanded reservation and political representation against systematic exclusion and caste-based hierarchies.

ex (i) First formal reservation policy (1921) introduced by the Madras Presidency.

(ii) Poona Pact → Reserved seat for depressed classes in the legislature.

2. Constitutional phase (1950s-1970s)

"Reservation is not just a privilege but it is remedy for century of structured exclusion" - AMBEDKAR

Under Article 15(4) ~~and~~ 16(4) ^{§ Article-332} of the constitution enabled the positive discrimination in education and public employment and representation.

ex (i) Reservation in ~~prim~~ public education colleges - IITS ; IIM ; NLU etc.

(ii) Reservation in public employment - BPSC, SSC, Banks etc

(iii) Political reservation in legislature and ~~Panchayat~~ and ~~Municipality~~ central and state.

3. Backward class phase (1970s-1990s)-

From caste based to social backwardness reservation in education and employment & ~~At~~ state level intra-caste reservation - Bihar, Tamil Nadu.

~~At central level under~~

Under A-340 second Backward class commission, ^{formed} in 1979 i.e. Mandal commission which ~~proposed~~ identity, social, educational and economic ~~indicator~~ ^{backward} for group for upliftment.

But at state level intra-caste sub-categorization within OBCs seen in Bihar (Kampani movement) and Tamil Nadu.

ex → (i) Kampani model in 1978 sub-categorized OBC into BC and EBCs.

(ii) Tamil Nadu sub-categorization of OBC into BC and MBC in 1980s

(iii) 27% reservation to OBCs ~~at~~ in government job & public employment ~~at~~ ~~at~~ central level in 1990s.

4 Gender based reservation: HORIZONTAL

"I measure the progress of community by the degree of progress which women have achieved" — AMBEDKAR

VERTICAL → HORIZONTAL

To address this structural inequality, GENDER based reservation has emerged as a key to empowerment, representation and equal participation in nation development.

ex (i) 73rd & 74th Constitutional Amendment which mandated 33% reservation for WOMEN

(ii) Bihar and Rajasthan expanded Panchayat raj institution reservation to 50%.

(iii) Bihar in employment - POLICE, school teacher ~~ex~~ to increased ~~from 33% to 50%~~ from 33% to 50% horizontally.

(iv) 106th CAA - political representation in state assemblies, central legislature.

5. Economic criteria

EWS reservation broaden the definition of disadvantages group i.e. ~~among general category~~ from historical disadvantage to contemporary economic hardship.

ex (i) 103rd CAA introduced 10% reservation for EWS among general category in emp^l employment and education.

(ii) Inclⁿ Inclusion of EWS reservation in schemes and grants for higher studies.

Structural faultline and critiques:-

1. Caste consciousness → Instead of fostering casteless society, caste identity became tool for bargaining reservation.

ex → Maratha reservation

CASTELESS → IDENTITY

2. Intra-group Elite capture → Reservation policy has been benefited to few group of family rather than equitable

ex (i) According to ROHINI Commission few group among OBC enjoy whole reservation

(ii) Few caste of SC/ST enjoy whole reservation.

3. Meritocracy erosion

Reservation may compromise institutional efficiency especially in critical sector like judiciary, medical and administration

ex → By securing low mark reserved person secured seat but unreserved category person not able secured seat by getting more marks.

4. Absence of sunset clause

Lack of periodic, data-driven assessment of its impacts and distortion has led to stagnation of reform, despite changing socio-economic realities.

5. Political Instrumentalisation

Reservation based politics increased by continues blaming historical injustice. Political constituency have been create like women votes, Palit vote, backward votes etc.

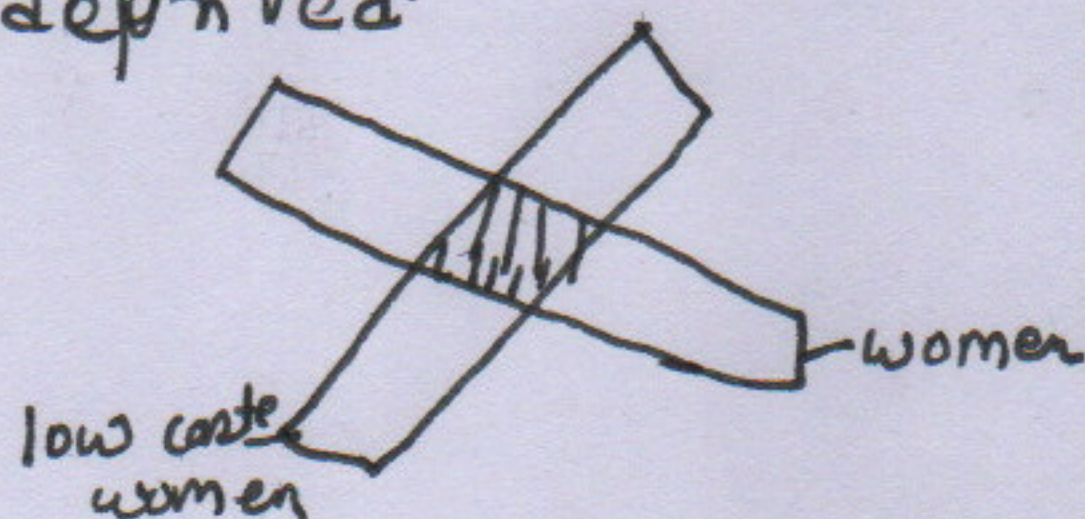
Way forward

1. Empirical evidence is need to ensure the actual deprivation justice.

↳ caste census

2. Sub classification among reserved category to provide reservation to ~~den~~ Intra group disparities.

3. Intersectionality policy to compensate deprived among deprived.



HOWEVER, affirmative action to remain relevant and effective they must be periodically reviewed, data driven and targeted at the truly disadvantage as AMARTYA SEN said "you cannot improve what you cannot measure". Social justice and meritocracy could not be undermined ~~so, not review~~
So, periodic review and effective policy is sustainable for SOCIAL JUSTICE.

Way Forward

1. Empirical evidence is need to ensure the actual deprivation justice.

2. Create census

3. Sub classification among reserved category to provide reservation to their inner group difference.

3. Internationally policy is compared deprived among deprived

